Syllabus

MONTGOMERY *v.* CARIBE TRANSPORT II, LLC, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

No. 24–1238. Argued March 4, 2026—Decided May 14, 2026

Petitioner Shawn Montgomery sustained severe and permanent injuries after his tractor trailer was struck by a truck driven by respondent Yosniel Varela-Mojena. Varela-Mojena was driving a load of plastic pots through Illinois for respondent Caribe Transport II, LLC, a motor carrier. Respondent C.H. Robinson Worldwide, Inc.—a transportation broker—had coordinated the shipment. Montgomery sued all respondents in Federal District Court and alleged, among other things, that C.H. Robinson was liable for his injuries because it negligently hired Varela-Mojena and Caribe Transport. Montgomery claimed that C.H. Robinson knew (or should have known) from Caribe Transport's safety rating that hiring it to transport goods was reasonably likely to result in crashes that would injure others. The District Court held that the Federal Aviation Administration Authorization Act (FAAAA)—which preempts state laws related to the prices, routes, and services of the trucking industry, 49 U. S. C. § 14501(c)(1)—expressly preempted Montgomery's negligent-hiring claim against C.H. Robinson. The District Court further held that the claim did not fall within the FAAAA's safety exception, which provides that the FAAAA's preemption provision "shall not restrict the safety regulatory authority of a State with respect to motor vehicles." § 14501(c)(2)(A). The Seventh Circuit affirmed. The Court granted certiorari to resolve whether the FAAAA's safety exception permits negligent-hiring claims against brokers like C.H. Robinson that coordinate shipments in the transportation industry.

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Held: A claim that one company negligently hired another to transport goods is not preempted by the FAAAA because States retain authority to regulate safety "with respect to motor vehicles" under the Act. Pp. 225–229.

(a) Even if the FAAAA otherwise preempts Montgomery's negligent-hiring claim against C.H. Robinson, the safety exception saves it. The relevant text provides that the FAAAA's preemption provision "shall not restrict the safety regulatory authority of a State with respect to motor vehicles." § 14501(c)(2)(A). All agree that common-law duties and standards of care form part of a State's authority to regulate safety. Negligent-hiring claims impose a duty of reasonable care in employing

a contractor for work carrying a risk of physical harm. The preemption question thus boils down to whether negligent-hiring claims of the type Montgomery presses are "with respect to motor vehicles." Because the FAAAA supplies no definition of "with respect to," the Court gives the phrase its ordinary meaning. Following dictionary definitions, the Court has construed the same phrase in the FAAAA's preemption provision to mean "concern[s]." *Dan's City Used Cars, Inc.* v. *Pelkey*, 569 U. S. 251, 261. The FAAAA defines "motor vehicle" as "a vehicle, machine, tractor, trailer, or semitrailer propelled or drawn by mechanical power and used on a highway in transportation." § 13102(16). Putting the pieces together, a claim is "with respect to motor vehicles" if it "concerns" the vehicles used in transportation. Here, requiring C.H. Robinson to exercise ordinary care in selecting a carrier "concerns" motor vehicles—most obviously, the trucks that will transport the goods. Montgomery's negligent-hiring claim thus falls within the FAAAA's safety exception, which saves it from preemption. Pp. 225–227.

(b) C.H. Robinson's counterarguments are unpersuasive. Construing the safety exception as Montgomery requests does not mean that it saves everything preempted by the FAAAA's express preemption provision. The safety exception saves only a subset of preempted claims: those involving regulations concerning motor vehicle safety. State laws related to motor carrier prices, routes, and services that have no relationship to safety remain preempted.

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C.H. Robinson argues that Montgomery's interpretation of the safety exception creates surplusage. But surplusage exists however the disputed phrase "with respect to motor vehicles" is defined, because any overlap comes from the reference to a State's regulatory authority over "safety."

Finally, C.H. Robinson asserts that interpreting the safety exception to cover brokers would create an anomaly with subsection (b) of the FAAAA, which preempts state regulation of "intrastate" rates, routes, or services "of any freight forwarder or broker." § 14501(b)(1). Unlike subsection (c), subsection (b) does not contain a safety exception. C.H. Robinson invokes this textual difference as a reason that subsection (c)'s safety exception should be read to exclude brokers. While it is not obvious why Congress included a safety exception in (c) but not in (b), it would be even odder to say that the alleged tort—the negligent hiring of an unsafe motor carrier whose truck caused injury—is *not* an exercise of "the safety regulatory authority of a State with respect to motor vehicles" under § 14501(c)(2)(A). The text of subsection (c)(2)(A) controls. Pp. 227–229.

124 F. 4th 1053, reversed and remanded.

Syllabus

BARRETT, J., delivered the opinion for a unanimous Court. KAVANAUGH, J., filed a concurring opinion, in which ALITO, J., joined, *post*, p. 229.

Paul D. Clement argued the cause for petitioner. With him on the briefs were *C. Harker Rhodes IV*, *Camilo Garcia*, *Michael J. Leizerman*, *Rena M. Leizerman*, and *Alan G. Pirtle*.

Theodore J. Boutrous, Jr., argued the cause for respondents. With him on the brief were *Warren L. Dean, Jr.*, *Kathleen E. Kraft*, *Dorothy G. Capers*, *Christopher A. Ugarte*, *Thomas H. Dupree, Jr.*, *Lucas C. Townsend*, *Cameron J. E. Pritchett*, *Andrew G. Barron*, *Matthew J. Reh*, *Paul L. Brusati*, and *Julie Fix Meyer*.

Sopan Joshi argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Stewart*, *Michael S. Raab*, *Charles E. Enloe*, and *Erin D. Hendrixson*.*

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*Briefs of *amici curiae* urging reversal were filed for the State of Ohio et al. by *Dave Yost*, Attorney General of Ohio, *Mathura J. Sridharan*, Solicitor General, *Layne H. Tieszen*, Deputy Solicitor General, and *Jeffrey S. Hobday*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Kristin K. Mayes* of Arizona, *Tim Griffin* of Arkansas, *Rob Bonta* of California, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Raúl R. Labrador* of Idaho, *Kwame Raoul* of Illinois, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Catherine L. Hanaway* of Missouri, *Austin Knudsen* of Montana, *Aaron D. Ford* of Nevada, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Gentner Drummond* of Oklahoma, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Alan Wilson* of South Carolina, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, *Charity R. Clark* of Vermont, *Jason Miyares* of Virginia, and *John B. McCuskey* of West Virginia; for American Truckers United by *Rosalind B. Bienvenu* and *Justin R. Kaufman*; for the Institute for Safer Trucking by *Brian Wolfman*; for Preemption Scholars by *Ernest A. Young, pro se*; for the Truck Safety Coalition

JUSTICE BARRETT delivered the opinion of the Court.

The Federal Aviation Administration Authorization Act preempts state laws related to the prices, routes, and services of the trucking industry. But there is an important exception: States retain authority to regulate safety "with respect to motor vehicles." This case presents the question whether a claim that one company negligently hired another to transport goods falls within that exception. It does.

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Sellers often use motor carriers to transport products to their destination. But finding a carrier can be time consuming, so many sellers rely on brokers to do it for them. Think of it this way: Brokers are the transportation industry's

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et al. by *Hyland Hunt*, *Ruthanne Deutsch*, and *Jeffrey Burns*; and for Robert Cox by *Adina H. Rosenbaum*, *Allison M. Zieve*, and *Christopher T. Saucedo*.

Briefs of *amici curiae* urging affirmance were filed for the State of Nebraska et al. by *Michael T. Hilgers*, Attorney General of Nebraska, *Cody S. Barnett*, Solicitor General, and *Frederick R. Yarger*, *Kevin D. Homiak*, and by *Christopher M. Carr*, Attorney General of Georgia; for Amazon.com, Inc., by *Roman Martinez* and *Margaret A. Upshaw*; for the Chamber of Commerce of the United States of America et al. by *Noel J. Francisco*, *Kelly Holt Rodriguez*, *Stephanie A. Maloney*, *Elizabeth Milito*, and *Karen R. Harned*; for Interested Freight Brokers by *Robert D. Moseley, Jr.*, *C. Fredric Marcinak III*, and *Martin E. Cain*; for the National Association of Manufacturers by *James H. Burnley IV*, *Ronald M. Jacobs*, *Megan Barbero*, and *Erica Klenicki*; for OurBus, Inc., by *Patricia L. Gatling*; for Tokio Marine Houston Casualty Co. by *Conte Cicala* and *Jovana Crncevic*; for the Transportation Intermediaries Association, Inc., by *Marc S. Blubaugh*; for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan*; and for Keith Hylton et al. by *Trisha Anderson* and *Martin Totaro*.

Briefs of *amici curiae* were filed for Airlines for America by *Shay Dvoretzky*, *Parker Rider-Longmaid*, and *Raza Rasheed*; and for Gergana Franco by *Jonathan L. Hilton* and *Geoffrey C. Parker*.